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SPD19L Seller's Property Disclosure (Land)
Adoption Date: August 5, 2025
Mandatory Use Date: January 1, 2026

THIS FORM HAS IMPORTANT LEGAL CONSEQUENCES AND THE PARTIES SHOULD CONSULT LEGAL AND TAX OR OTHER COUNSEL BEFORE SIGNING.

SELLER'S PROPERTY DISCLOSURE (LAND)

THIS SELLER'S PROPERTY DISCLOSURE SHOULD BE COMPLETED BY SELLER, NOT BY BROKER.

Seller states that the information contained in this Seller's Property Disclosure ("SPD") is correct to **Seller's CURRENT ACTUAL KNOWLEDGE** as of the date signed by Seller. If the sales contract requires Seller to complete this SPD, this form must be fully completed to Seller's current actual knowledge, as of the date of the contract. **Any changes to the disclosures herein must be disclosed by Seller to Buyer promptly after discovery. In the event Seller discovers a new adverse material fact after completing this SPD, Seller must disclose in writing any such new adverse material fact to Buyer. Seller's failure to disclose a known adverse material fact** affecting the Property or occupant **may result in legal liability.** If Seller has knowledge of an adverse material fact affecting the Property or occupants, it must be disclosed whether there is a specific item on this SPD or not. If the Property is part of a Common Interest Community, this SPD is limited to the Property or unit itself, except as stated in Section F.

Broker is authorized to deliver a copy of this SPD to prospective buyers.

Seller and Buyer understand that this SPD is not a warranty or guarantee of any kind by the Seller or by any Broker or Agent representing the Seller. Property inspection services may be purchased and are advisable. This SPD is **not** intended as a substitute for an inspection of the Property. **Buyers are encouraged to obtain their own professional inspection(s).**

SELLER: Your answers are NOT limited to only the space provided in this SPD. Attach additional pages, reports, receipts, or any other documents you believe necessary for the information you provide to be complete.

Date SPD completed by Seller: _____

Property: _____

Seller: _____

Year Seller Acquired Property: _____

Note: The Contract to Buy and Sell Real Estate, not this SPD, determines whether an item is included or excluded in the sale. If there is an inconsistency between this SPD and the Contract, the Contract controls.

I. FLOODING, DRAINAGE, RETENTION PONDS AND WATER SUPPLY

A.	**FLOODING AND DRAINAGE** If you know of any problems **EVER EXISTING** with the following on the Property, check the "Yes" column:	**Yes**	**Comments**
1	Flooding	☐	
2	Drainage issues	☐	
3	Grading issues	☐	
4		☐	
	DRAINAGE AND RETENTION PONDS – Other Information Do you know of the following on the Property:		

5	Drainage or retention ponds, dams, storm water detention basins, or other similar facilities	☐	
6		☐	

B.	**WATER SUPPLY** Provide the following information regarding the Property:
1	Type of water supply: ☐ Public ☐ Community ☐ Well ☐ Shared Well ☐ Other ☐ None If the Property is served by a Well, a copy of the Well Permit ☐ **Is** ☐ **Is Not** provided. Well Permit #: _____ Drilling Records ☐ **Are** ☐ **Are not** provided. Shared Well Agreement ☐ **Yes** ☐ **No**.

II. GENERAL

C.	**USE, ZONING & LEGAL ISSUES** If you know of any of the following **EVER EXISTING,** check the "Yes" column:	**Yes**	**Comments**
1	Zoning violation, variance, conditional use, violation of an enforceable PUD, or non-conforming use	☐	
2	Notice or threat of condemnation proceedings	☐	
3	Notice of any adverse conditions from any governmental or quasi-governmental agency that have not been resolved	☐	
4	Notice of zoning action related to the Property	☐	
5	Building code, city or county violations	☐	
6	Violation of restrictive covenants or owners' association rules or regulations	☐	
7	Other legal action	☐	
8	Any part of the Property leased to others (written or oral)	☐	
9	Archeological or historical designation on the Property	☐	
10	Threatened or Endangered species on the Property	☐	
11	Grandfathered conditions or uses	☐	
12		☐	

D.	**ACCESS & PARKING** If you know of any of the following **EVER EXISTING,** check the "Yes" column:	**Yes**	**Comments**
1	Any access problems, issues or concerns	☐	
2	Roads, trails, paths, or driveways through the Property used by others	☐	
3	Public highway or county road bordering the Property	☐	
4	Any proposed or existing transportation project that affects or is expected to affect the Property	☐	
5	Encroachments, boundary disputes, or unrecorded easements	☐	
6	Shared or common areas with adjoining properties	☐	
7	Requirements for curb, gravel/paving, landscaping	☐	
8	Any limitations on parking or access due to size, number of vehicles, or type of vehicles in the past year	☐	
9		☐	
10		☐	

E.	**ENVIRONMENTAL CONDITIONS** If you know of any of the following **EVER EXISTING** on any part of the Property, check the "Yes" column:	**Yes**	**Comments**
1	Hazardous materials on the Property, such as radioactive, toxic, or biohazardous materials, asbestos, pesticides, herbicides, wastewater sludge, radon, methane, mill tailings, solvents, or petroleum products	☐	
2	Underground storage tanks	☐	
3	Aboveground storage tanks	☐	
4	Underground transmission lines	☐	
5	Property used as, situated on, or adjoining a dump, landfill or municipal solid waste landfill	☐	
6	Monitoring wells or test equipment	☐	
7	Sliding, settling, upheaval, movement or instability of earth, or expansive soils on the Property	☐	
8	Mine shafts, tunnels, or abandoned wells on the Property	☐	
9	Within a governmentally designated geological hazard or sensitive area	☐	
10	Within a governmentally designated floodplain or wetland area	☐	
11	Dead, diseased, or infested trees or shrubs	☐	
12	Environmental assessments, studies, or reports done involving the physical condition of the Property	☐	
13	Used for any mining, graveling, or other natural resource extraction operations such as oil and gas wells	☐	
14	Other environmental problems, issues or concerns	☐	
15	Odors	☐	
16		☐	

F.	**COMMON INTEREST COMMUNITY – ASSOCIATION PROPERTY** If you know of any of the following **NOW EXISTING,** check the "Yes" column:	**Yes**	**Comments**
1	Property is part of an owners' association	☐	
2	Special assessments or increases in regular assessments approved by owners' association but not yet implemented	☐	
3	Problems or defects in the Common Elements or Limited Common Elements of the Association Property	☐	
	COMMON INTEREST COMMUNITY – ASSOCIATION PROPERTY If you know of any of the following **EVER EXISTING,** check the "Yes" column:		
4	Has the Association made demand or commenced a lawsuit against a builder or contractor alleging defective construction of improvements of the Association Property (common area or property owned or controlled by the Association but outside the Seller's Property or unit)	☐	
5		☐	
	COMMON INTEREST COMMUNITY – ASSOCIATION PROPERTY – Other Information: Name of the Owners' Associations governing the Property**:**		**Contact Information**
6	Owners' Association #1: _____		

7	Owners' Association #2: _____		
8	Owners' Association #3: _____		
9	Owners' Association #4: _____		

G.	**GENERAL DISCLOSURES** If you know of any of the following **EVER EXISTING,** check the "Yes" column:	**Yes**	**Comments**
1	Written reports of any building, site, roofing, soils, water, sewer, mold, or engineering investigations or studies of the Property. Provide copies of all such reports in possession of Seller.	☐	
2	Any property insurance claim submitted (whether paid or not)	☐	
3	Government special improvements approved, but not yet installed, that may become a lien against the Property. Provide copies of all such reports in possession of Seller.	☐	
4	Pending: (1) litigation or (2) other dispute resolution proceeding regarding the Property	☐	
5	Signs: Government or private restriction problems	☐	
6	Property is subject to Deed Restrictions, other recorded document restrictions, or Affordable Housing Restrictions	☐	
7		☐	
	GENERAL – Other Information:		
8		☐	

III. LAND – AGRICULTURAL

H.	**CROPS, LIVESTOCK & LEASES** If you know of any of the following conditions **NOW EXISTING,** check the "Yes" column:	**Yes**	**Comments**
1	Crops being grown on the Property	☐	
2	Seller owns all crops	☐	
3	Livestock on the Property	☐	
4	Any land leased from others: ☐ State ☐ BLM ☐ Federal ☐ Private ☐ Other _____ If yes, provide name and contact information of lessor in Comments	☐	
5	Any land leased to others: ☐ State ☐ BLM ☐ Federal ☐ Private ☐ Other _____ If yes, provide name and contact information of lessee in Comments	☐	
6		☐	

I.	**NOXIOUS WEEDS** If you know of any of the following conditions **EVER EXISTING,** check the "Yes" column:	**Yes**	**Comments**
1	Have any noxious weeds on the Property been identified?	☐	

2	Have there been any weed enforcement actions on the Property?	☐	
3	Has a noxious weed management plan for the Property been entered into?	☐	
4	Have noxious weed management actions been implemented?	☐	
5	Have herbicides been applied?	☐	
6		☐	

The Colorado Noxious Weed Management Act (C.R.S. §§ 35-5.5-101-119) enables county and city governments to implement noxious weeds management programs to reclaim infested acres and protect weed-free land. For a directory of county weed supervisors, call 303-239-4173 or visit www.colorado.gov/ag/weeds.

J.	**OTHER DISCLOSURES – LAND – CONSERVATION** If you know of any of the following conditions **NOW EXISTING,** check the "Yes" column:	**Yes**	**Comments**
1	Any part of the Property enrolled in any governmental programs such as Conservation Reserve Program (CRP), Wetlands Reserve Program (WRP), etc.	☐	
2	Conservation easement	☐	
3		☐	
4		☐	

The information contained in this SPD has been furnished by Seller, who certifies it was answered truthfully, based on **Seller's CURRENT ACTUAL KNOWLEDGE**.

Seller Date Seller Date

ADVISORY TO BUYER:

1. Even though Seller has answered the above questions to Seller's current actual knowledge, Buyer should thoroughly inspect the Property and obtain expert assistance to accurately and fully evaluate the Property to confirm the status of the following matters are satisfactory to Buyer:
   a. the physical condition of the Property;
   b. the presence of mold or other biological hazards;
   c. the presence of rodents, insects, and vermin including termites;
   d. the legal use of the Property, including zoning and legal access to the Property;
   e. the availability and source of water, sewer, and utilities;
   f. the environmental and geological condition of the Property;
   g. the presence of noxious weeds; and
   h. any other matters that may affect Buyer's use and ownership of the Property that are important to Buyer as Buyer decides whether to purchase the Property.
2. Seller states that the information is correct to "Seller's current actual knowledge" as of the date of this form. The term "current actual knowledge" is intended to limit Seller's disclosure only to facts actually known by the Seller and does not include "constructive knowledge" or "common knowledge" or what Seller "should have known" about the Property. The Seller has no duty to investigate or inspect the Property or inclusions when this SPD is filled in and signed.
3. Valuable information may be obtained from various local/state/federal agencies, and other experts may assist Buyer by performing more specific evaluations and inspections of the Property.
4. Boundaries, location and ownership of fences, driveways, hedges, and similar features of the Property may become the subjects of a dispute between a property owner and a neighbor. A survey may be used to determine the likelihood of such problems.

5. Seller does not warrant that the Property or inclusions are fit for Buyer's intended purposes or use of the Property. Disclosure of the condition of an item is not to be construed as a warranty of its continued operability or as a representation or warranty that such item is fit for Buyer's intended purposes.

BUYER(S) ACKNOWLEDGE RECEIPT OF THIS SPD. BUYER(S) SIGNATURE DOES NOT CONSTITUTE APPROVAL OF ANY DISCLOSED CONDITION AS REPRESENTED HEREIN BY SELLER.

Buyer	Date	Buyer	Date